

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

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**DANIEL JOHNSON,
GAVIN NEATHLY,**

Plaintiffs,

- against -

**CITY OF NEW YORK,
POLICE OFFICER KENNETH MACCALLA**

Defendants.

Index No. _____
Purchased _____

Plaintiffs designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
September 19, 2019


ERIC D. LEVY, ESQ.
Attorney for Plaintiff
930 Grand Concourse, Suite 1E
Bronx, New York 10451
(646) 755-8020

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

-----X

**DANIEL JOHNSON,
GAVIN NEATHLY,****Plaintiffs,****Index No.
Complaint****- against -****THE CITY OF NEW YORK,
POLICE OFFICER KENNETH MACCALLA****Defendants.**

-----X

Plaintiffs DANIEL JOHNSON and GAVIN NEATHLY, by their attorney ERIC D. LEVY, ESQ., principals, complaining of the Defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff DANIEL JOHNSON ("MR. JOHNSON") was a resident of Bronx County, City and State of New York.
2. At all times hereinafter mentioned, Plaintiff GAVIN NEATHLY ("MR. NEATHLY") was a resident of Bronx County, City and State of New York.
3. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
4. At all times hereinafter mentioned, Defendant POLICE OFFICER KENNETH MACCALLA, ("MACCALLA") was and still is a police officer employed by the Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT

("NYPD").

5. On and prior to April 7, 2017, MACCALLA was employed by Defendants CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

6. The actions of MACCALLA described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

BACKGROUND

7. On or about April 7, 2017, MACCALLA, acting as an agent, servant and employee of Defendants CITY and NYPD, without just cause or provocation, intentionally and falsely accused MR. JOHNSON AND MR. NEATHLY of having committed the crime of Criminal Possession of Marijuana in the First Degree (P.L. § 221.30) and lesser charges.

8. On or about April 7, 2017, Defendants, their agents, servants and/or employees, intentionally placed MR. JOHNSON AND MR. NEATHLY under arrest without just cause or provocation and with reckless and negligent disregard for the truth.

9. On or about April 9, 2017, a criminal complaint was issued at the directive of Defendants, and a criminal action against MR. JOHNSON AND MR. NEATHLY was commenced under Docket Nos. 2017BX014539 and 2015BX014535, respectively.

10. After his arrest on April 7, 2017, MR. JOHNSON was detained by Defendants until he was released on his own recognizance, by the court on or about April 9, 2017.

11. After his arrest on April 7, 2017, MR. NEATHLY was detained by Defendants until he was released on or about April 9, 2017.

12. As a result of the treatment of MR. JOHNSON by the Defendants, MR.

JOHNSON was denied liberty by being falsely arrested and imprisoned for approximately two (2) days.

13. As a result of the treatment of MR. NEATHLY by the Defendants, MR. NEATHLY was denied liberty by being falsely arrested and imprisoned for approximately two (2) days.

14. MR. JOHNSON AND MR. NEATHLY suffered emotional injuries due to the conduct of the Defendants. As a result of being falsely arrested and detained, MR. JOHNSON AND MR. NEATHLY suffered humiliation, fear for their safety and other emotional distress.

PROCEDURAL POSTURE

15. Plaintiffs served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

16. More than thirty days have elapsed since service of said notice, and Defendant CITY has failed to pay or adjust the claim.

17. This action has been commenced within one year and ninety days after the cause of actions of Plaintiffs accrued.

18. Plaintiffs has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE ARREST

19. Paragraphs 1-18 are incorporated by reference as fully set forth herein.

20. On April 7, 2017 at approximately 1:20 a.m., inside 4251 Byron Ave., Bonx County, Defendant MACCALLA wrongfully touched, grabbed, handcuffed and

seized MR. JOHNSON AND MR. NEATHLY, in an excessive manner about their person, causing MR. JOHNSON AND MR. NEATHLY physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch Plaintiffs.

21. MR. JOHNSON AND MR. NEATHLY were aware of their arrest and confinement as described in paragraphs 1-17, and he did not consent to that arrest or confinement, nor was it privileged by law.

22. As a result of being falsely arrested by the Defendants, MR. JOHNSON AND MR. NEATHLY sustained multiple injuries. Plaintiffs were denied liberty and the ability to enjoy life. They also suffered emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for their safety.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

23. Paragraphs 1-22 are incorporated by reference as though fully set forth herein.

24. The Defendants, their agents, servants and employees, arrested and confined MR. JOHNSON AND MR. NEATHLY, as described in paragraphs 1-20, and intended to confine MR. JOHNSON AND MR. NEATHLY. MR. JOHNSON AND MR. NEATHLY were conscious of his confinement and did not consent to it; moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

25. As a result of being falsely imprisoned by the Defendants, MR. JOHNSON AND MR. NEATHLY sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for their safety.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

26. Paragraphs 1-25 are incorporated by reference as though fully set forth herein.

27. In arresting MR. JOHNSON AND MR. NEATHLY, MACCALLA, acting in his capacity as an agent, servant and employee of Defendants CITY and NYPD, was motivated by an ulterior purpose to do harm, without justification or economic or social excuse. Specifically, the arrests of Plaintiffs was motivated by the desire to earn overtime and inflate arrest statistics.

28. In arresting MR. JOHNSON AND MR. NEATHLY, MACCALLA, acting in his capacity as the agent, servant and employee of Defendants CITY and NYPD, sought either a detriment to MR. JOHNSON AND MR. NEATHLY or a collateral advantage to the Defendants that is outside of the legitimate ends of making an arrest.

29. As a result of the abuse of process by the Defendants, MR. JOHNSON AND MR. NEATHLY sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION ASSAULT AND BATTERY

30. Paragraphs 1-29 are incorporated by reference as though fully set forth herein.

31. On April 7, 2017, at approximately 1:20 a.m., inside 4251 Byron Ave., in Bronx County, Defendant MACCALLA along with other New York City police officers, wrongfully touched, grabbed, pushed, handcuffed and seized MR. JOHNSON AND MR. NEATHLY, in an excessive manner about their person, causing MR. JOHNSON AND MR. NEATHLY physical pain and mental suffering.

32. That on or about April 7, 2017, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff MR. JOHNSON AND MR.

NEATHLY were intentionally touched, grabbed, pushed, assaulted, violated, humiliated and handcuffed by MACCALLA, along with other New York City police officers who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiffs.

33. That on or about April 7, 2017, along with other New York City police officers their agents, servants and employees, acting as agents and on behalf of the CITY and NYPD within the scope of their employment, did intentionally, willfully and maliciously assault and batter MR. JOHNSON AND MR. NEATHLY, in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to MR. JOHNSON AND MR. NEATHLY and their act caused apprehension of such contact in the plaintiffs, and in a hostile and/or offensive manner intentionally touched the plaintiffs and/or made offensive bodily contact to MR. JOHNSON AND MR. NEATHLY and caused such battery in and about their chest, body and limbs. At no time did MR. JOHNSON AND MR. NEATHLY consent to the aforesaid assault and battery.

34. While not conceding that said arrest was lawful or made upon probable cause, the aforesaid intentional assault and battery during the arrest was excessive. The excessive force used, including but not limited to the pushing, shoving and grabbing of MR. JOHNSON AND MR. NEATHLY, was an assault and battery beyond that which was necessary to make the arrests.

35. That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, in particular MACCALLA, along with other New York City police officers acting within the scope of their employment and authority and without any probable or reasonable cause, MR. JOHNSON AND MR. NEATHLY suffered bodily injury in and about their body and limbs and suffered conscious pain and suffering, and that they were otherwise damaged.

FIFTH CAUSE OF ACTION: NEGLIGENCE

36. Paragraphs 1-35 are incorporated by reference as though fully set forth herein.

37. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process and malicious prosecution were caused solely by the negligence of the Defendants, their agents, servants and/or employees.

38. As a result of the negligence of the Defendants, MR. JOHNSON AND MR. NEATHLY sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

SIXTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

39. Paragraphs 1-38 are incorporated by reference as though fully set forth herein.

40. Defendants CITY and NYPD, through its agents, servants and employees, had the responsibility for supervising, disciplining, evaluating and training MACCALLA, as well as all of the other NYPD officers involved in this matter.

41. Defendants CITY and NYPD have grossly failed to train and properly supervise its police officers, particularly the detectives and police officers involved herein, regarding the law of arrest, search and seizure.

42. Defendants CITY and NYPD were negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiffs unless there is a court authorized warrant or sufficient cause.

43. The foregoing acts, omissions and systematic failures are customs and policies of the Defendants, which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize Plaintiffs.

44. Defendants CITY and NYPD had the responsibility for supervising, disciplining, evaluating and training the police officers involved herein, including MACCALLA.

45. Defendants CITY and NYPD were negligent in supervising, disciplining, evaluating and training the police officers involved herein, including MACCALLA.

46. As a result of the negligence of Defendants CITY and NYPD and MACCALLA, MR. JOHNSON AND MR. NEATHLY sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for their safety.

SEVENTH CAUSE OF ACTION: NEGLIGENT HIRING

47. Paragraphs 1-46 are incorporated by reference as though fully set forth herein.

48. Defendants CITY and NYPD had the responsibility for hiring MACCALLA.

49. Defendants CITY and NYPD were negligent in hiring MACCALLA.

50. As a result of the negligence of the Defendants, MR. JOHNSON AND MR. NEATHLY sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for their safety.

EIGHTH CAUSE OF ACTION: MALICIOUS PROSECUTION

51. Paragraphs 1-50 are incorporated by reference as though fully set forth herein.

52. On or about April 7, 2017, and from that time until July 3, 2018, when Plaintiffs' cases were dismissed upon application of the District Attorney, the Defendants deliberately and maliciously prosecuted Plaintiffs, innocent men, without any probable

cause whatsoever, by filing or causing a criminal complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing Plaintiff of violations of the criminal laws of the State of New York.

53. The Defendants, their agents, servants or employees failed to take reasonable steps to stop the prosecution of Plaintiffs and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's Office to induce prosecution of Plaintiffs.

54. The commencement of these criminal proceedings under Docket Nos. 2017BX014539 and 2015BX014535 were malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

55. As a result of being maliciously prosecuted by the Defendants, Plaintiffs were deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.

NINETH CAUSE OF ACTION

56. Paragraphs 1-55 are incorporated by reference as though fully set forth herein.

57. Defendant MACCALLA was at all times relevant, a duly appointed and acting officer of the City of New York Police Department.

58. At all times mentioned herein, MACCALLA was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

59. Plaintiffs are and at all times relevant herein, a citizens of the United States and brings this cause of action pursuant to 42 United States Code, section 1983 and 42

United States Code, section 1988.

60. Defendant CITY is a municipality duly incorporated under the laws of the State of New York.

61. On or about April 7, 2017 the Defendants, armed police, while effectuating the seizure of the Plaintiffs did search, seize, assault and grab the person of Plaintiffs without a court authorized arrest warrant. They did physically seize the person of Plaintiffs during the arrest process in an unlawful and excessive manner. Plaintiffs were falsely arrested and maliciously prosecuted without the Defendants possessing probable cause.

62. The above actions of the Defendants resulted in Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution;
- f. Freedom from the use of excessive force during the arrest process.

63. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United State Constitution and that it was and is still the practice of NYPD to disregard the rights of individuals under the fourth and fourteenth amendments to the United States Constitution when entering homes

without consent.

64. The direct and proximate result of the Defendants' acts are that Plaintiff has suffered severe and permanent injuries of a psychological nature. They were forced to endure pain and suffering, all to his detriment.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, New York
September 19, 2019

Yours, etc.,



ERIC D. LEVY, ESQ.
Attorney for Plaintiff
930 Grand Concourse, Suite 1E
Bronx, NY 10451
646-755-8020

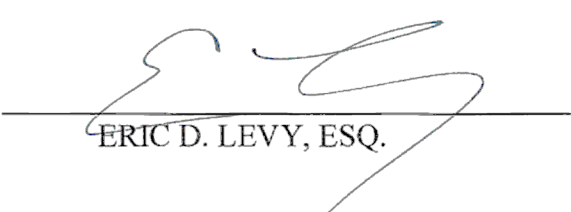
VERIFICATION

ERIC D. LEVY, affirms the following statements to be true under the penalties of perjury, pursuant to Rule 2016 of the CPLR:

I have read the foregoing SUMMONS AND VERIFIED COMPLAINT and know the contents thereof based upon a review of the file maintained in my office; that the same is true to my own knowledge except as to those matters therein stated to be alleged upon information and belief, and as to those matters, I believe them to be true.

I execute this Verification since I maintain my office in Bronx County and DANIEL JOHNSON, is currently residing outside Bronx County.

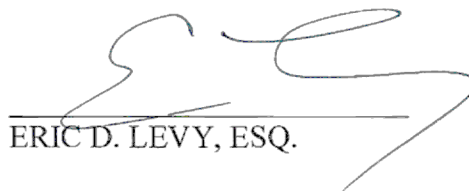
Dated: Bronx, New York
 September 19, 2019



ERIC D. LEVY, ESQ.

CERTIFICATION

I, ERIC D. LEVY, ESQ., certifies, that, to the best of my knowledge, information and belief, the presentation of the paper is not frivolous and, where the paper is an initiating pleading, that the matter was not obtained through illegal conduct or, if it was, that the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing fees and that the matter was not obtained in violation of DR 7-111. (22 N.Y.C.R.R. 130-1.1-a[b]).



ERIC D. LEVY, ESQ.